



**DEPARTMENT OF THE NAVY
SOUTHWEST REGIONAL MAINTENANCE CENTER
3755 BRINSER ST STE 1
SAN DIEGO, CA 92136-5299**

Code: 440A
Contract Number: N00024-24-C-4408
Date: 16 April 2025

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION**

1. CONTRACTING ACTIVITY

The Naval Sea Systems Command, Southwest Regional Maintenance Center (N55236), Contracting Department Code 440A, 3755 Brinser Street, Suite #1, San Diego, CA 92136-5299. Contracting ACO: Jacob Fox, Jacob.w.fox.civ@us.navy.mil

2. DESCRIPTION OF THE ACTION BEING APPROVED:

Sole source contract action is to add one Preventative Maintenance Availability (PMAV) Package at Firm Fixed Price to BAE Systems San Diego Ship Repair Inc. (BAE) under Contract N00024-24-C-4408 awarded for USS MOBILE (LCS 26) Fiscal Year 2025 (FY25) Docking Selected Restricted Availability (DSRA).

Work Item to be incorporated:

- a. PMAV DRSA 7

3. DESCRIPTION OF SUPPLIES/SERVICES:

- a. The procurement is to accomplish one Preventative Maintenance Availability (PMAV) Package (PMAV DRSA 7) on the USS MOBILE (LCS-26) as detailed in the PMAV packages. Key Dates are detailed in Section J Attachment J-3 Execution Milestone and Key Events Rev 1.
- b. Total Value: \$86,482.80. Funding will be FY25 OPN-TYCOM.
- c. The work will begin 25 April 2025, or as soon as authorized to place on contract and be completed by 28 August 2025. The USS MOBILE (LCS 26) FY25 DSRA start of the availability was 04 December 2024 with a Delivery Date of 21 November 2025.
- d. The Government's minimum needs have been certified as complete and accurate by the technical and requirements personnel.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

The statutory authority permitting other than full and open competition is 10 U.S.C. § 3204 (a)(2) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1— this authority applies in those situations where only one responsible source and no other supplies or services will satisfy agency requirements and precludes full and open competition, and delaying in award would result in serious injury to the Government. This availability is the last opportunity to complete this upgrade during the ships availability window and this work is needed to fulfill required operational capability.

5. RATIONALE JUSTIFYING USE OF CITED STATUTORY AUTHORITY.

The PMAV Package, consisting of PMAV DSRA 7 was issued in accordance with Section C Paragraph 1.20 in support of the USS MOBILE (LCS26) Fiscal Year 2025 (FY25) DSRA. The package consist of 6 orders for a Planned Maintenance System (PMS). This work is required because Littoral Combat Ships (LCS) are designed due to manning requirements that contractors will conduct PMAV work. While there may still be sufficient time within this DSRA to complete the PMS checks, limiting competition will avoid substantial duplication of costs and avoid unacceptable delays. A sources sought was posted to System for Award Management (SAM) on 16 April, 2025. Only one company responded to the posting which was BHPE Aerospace, Land, and Marine. After further review, even though BHPE replied to the sources sought, there is still only one responsible source, BAE that can satisfy the agency requirements without serious injury to the Government.

Only BAE can satisfy the agency requirements without the Government incurring substantial duplication of costs that are not expected to be recovered through competition. The USS MOBILE is already in BAE System's ship yard undergoing a current production, and BAE therefore already has all the necessary temporary services set up, including air, power, and water. Any other contractor would need to duplicate those services, which are estimated to be approximately \$150,000.00. The duplicated costs of competing this work would therefore be so substantial they could not possibly be recovered through competition.

Additionally, only one responsible source, BAE, can satisfy the agency requirements without unacceptable delay. The ship is currently in BAE's yard and BAE has already been awarded the CNO. Sequencing work between the CNO and PMAV will cause delays, a risk that increases if more than one contractor need to coordinate. Considering the contractual daily extension rate is [REDACTED], any delay risks significant additional costs. The estimated time frame for completion of these repairs is sixty (60) days. As shown in the next paragraph, the timeline to compete the work does not support the completion of work prior to the Production Complete (PCD) Milestone 28 August 2025. If competed, the timeline for solicitation is projected as follows:

Development of Requirements Package due to contracts by May 2025, Solicitation/Request for Proposal (RFP), Respond to Preproposal Inquiries (PPI) and submit required Solicitation Amendments (15-29 May 2025), Receipt and Evaluation of proposals by June 2025 and execute Contract Award by July 2025. Thus, the required work would commence July at the earliest, and given the 60 days of estimated for completion, the work will end in September 2025. This is after the PCD milestone of 28 August 2025. Therefore, for every day the PMAVs are not authorized on contract, it has the potential to impact the scheduled ship training leading to end of avail, therefore,

creating a day-to-day delay in schedule. Any delay will impact the milestones and key events in support of the end of availability, and deployment readiness.

This work needs to be accomplished by the Production Complete Date of 28 August 2025 in order for the ship to meet its operational and testing requirements that are scheduled after the DSRA. For every day these PMAVs are not on contract, there is the potential to cause a day-to-day delay in the established milestones and potentially the delivery date. Timely completion of this work is critical. Failure to complete the repairs by the Production Complete Date will prevent the ship from achieving certification and accomplishing training to be mission ready. BAE has the means to incorporate the scope of work in DSRA 7 PMAV without significant delays or duplication of costs. By repairing these deficiencies, we can mitigate the risk of further damage and ensure the integrity and longevity of the associated system

6. DESCRIPTION OF EFFORTS MADE TO SOLICIT OFFERS FROM AS MANY OFFERORS AS PRACTICABLE:

The original contract was awarded competitively in which BAE was the selected awardee and this work was not on contract under the award. BAE is uniquely positioned to perform the work as the ship is currently under repair by BAE at their shipyard undergoing a Docking Selected Restricted Availability (DSRA), and it is impracticable for another company to perform these suppose services concurrently with other ongoing repairs currently being completed by BAE. A publication will be posted in accordance with FAR 5.201 once the PMAV is settled.

7. DETERMINATION OF FAIR AND REASONABLE COST:

The Contracting Officer has determined that the anticipated cost to the Government of this acquisition will be fair and reasonable based on cost and price analysis to be conducted pursuant to FAR Part 15. In addition, technical analysis will be performed with the Project Manager to ensure the proposed labor hours, material cost, and subcontractor cost correspond with the expected cost or Independent Government Estimate (IGE). The basis of estimate for the IGE was developed utilizing the SWRMC Estimating Guide and the Ship Build Specialist's knowledge of the requirements. The ship repair market is well known to the contracting officer based on his in-depth experience in the field.

8. ACTION TAKEN TO REMOVE BARRIERS TO COMPETITION:

Upon discovery of the repairs, discussions commenced with Government leadership to analyze the best course of action given the availability's schedule and the available options. Due to the time restraint on when the work was to be completed to not impact the overall availability schedule and various other sequenced working events, it was determined that there was not sufficient time to solicit out the new work. Cost was also a factor as BAE would have the better price due to already having the ship in their shipyard and the services already made readily available. Due to the high likely hood of a higher cost to the government and unacceptable timeframes outside the awarded availability schedule, it is in the Government's best interest to include this new work into the contract.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE:

PALOMBA.ANTHONY. [REDACTED]

Digitally signed by

PALOMBA.ANTHONY [REDACTED]

Date: 2025.04.21 08:04:06 -07'00'

Project Manager – USS MOBILE (LCS 26)

REQUIREMENTS COGNIZANCE:

ZACHARIAS.DARIN.LARYSSA [REDACTED]

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ZACHARIAS.DARIN.LARYSSA [REDACTED]

Date: 2025.04.21 12:10:54 -07'00'

Port Engineer - USS MOBILE (LCS 26)

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90))

I have determined this justification is legally sufficient.

LAUTEMANN.DREW.ALLAN [REDACTED]

Digitally signed by

LAUTEMANN.DREW.ALLAN [REDACTED]

Date: 2025.04.21 12:32:06 -07'00'

Office of Counsel, SWRMC C100
(619) 556-1587

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this justification is accurate and complete to the best of my knowledge and belief.

FOX.JACOB.W. [REDACTED]

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FOX.JACOB.W. [REDACTED]

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Administrative Contracting Officer
SWRMC C440A